

The Gazette of Pakistan

EXTRAORDINARY
PUBLISHED BY AUTHORITY

ISLAMABAD, SATURDAY, NOVEMBER 18, 2000

PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

NARCOTICS CONTROL DIVISION

NOTIFICATION

Islamabad, the 15th November, 2000

✓ S. R. O. 833 (I)/2000.—In exercise of the powers conferred by clause (c) of sub-section (2) of section 17 of the Anti Narcotics Force Act, 1997 (III of 1997), the Federal Government is pleased to make the following rules, namely :—

1. **Short title, commencement and application.**—(1) These rules may be called the Anti Narcotics Force Reward Rules, 2000.

(2) They shall come into force at once.

(3) These rules shall apply to :—

- (a) informers giving tangible information leading to the seizure of narcotics ;
- (b) officers and staff of the Force who are physically involved in the operations of interdiction or seizure of narcotics ;
- (c) officers and staff enquiring or investigating drug assets or money laundering cases leading to freezing and confiscation of assets ; and

(2333)

Price : Rs. 5.00

[4469 (2000)/Ex. Gaz.]

- (d) officers and staff conducting the prosecution in courts leading to conviction of the persons involved in drug smuggling, in exceptional cases only.

2. **Interpretation.**—In these rules, unless there is anything repugnant in the subject or context, words and expressions used but not defined herein shall have the same meanings as in the Anti Narcotics Force Act, 1997 (III of 1997).

3. **Amounts of rewards.**—Subject to rule 5, there shall be paid an amount of reward specified in column (3) of the table below in respect of the narcotic substances specified in column (2) thereof, namely :—

TABLE

1	2	3
(1) Heroin.		Five thousand rupees per kg.
(2) Cocaine.		Four thousand rupees per kg.
(3) Hashish Oil.		Three thousand rupees per litre.
(4) Charas or hashish.		Five hundred rupees per kg.
(5) Opium.		One thousand five hundred rupees per kg.
(6) Acetic anhydride.		One thousand five hundred rupees per litre.
(7) Other narcotic substances or controlled substances.		Reward to be determined by the Director General depending upon the quantity and value of substances seized on case to case basis.

4. **Distribution of amount of rewards.**—(1) Out of the amount of reward admissible under rule 3, the following shall be the distribution thereof, namely :—

- (a) For seizure :

- | | |
|---|---|
| (i) Informer. | One-third of the admissible amount of reward. |
| (ii) Officers and staff of the Force. | One-third of the admissible amount of reward. |
| (iii) Common pool for welfare of officers and staff of the Force. | One-third of the admissible amount of reward. |

(b) Assets investigation leading to confiscation of proceeds of crime :

- (i) Out of the total market value of confiscated property and proceeds thereof two and a half per cent may be given as reward to officers and staff of the Force who remained involved with a case at any stage after final conclusion of the case in the Court and realization of cash proceeds as specified in clause (c) of sub-rule (3) of rule 1 as may be determined by the Director General ;
- (ii) Two and a half per cent of proceeds shall be paid into the common pool for welfare of officers and staff of the Force ; and
- (iii) The remaining ninety-five per cent shall be credited to the National Fund for Drug Abuse Control constituted under sub-section (1) of section 54 of the Control of Narcotic Substances Act, 1997 (XXV of 1997)..

(2) The concerned officer or staff shall also be entitled to payment of reward under these rules after retirement, or in case of death, widow or widower shall be eligible to receive reward unless a contrary intention has been expressed in writing by officer or staff, as the case may be, during life time, and in case of death of such officer or staff any person nominated by him shall be eligible to receive reward.

5. **Maximum limit of reward.**—In any case the amount of reward admissible under these rules shall not exceed two years' pay of officers or staff entitled thereto except as specified in sub-clauses (i) and (ii) of clause (b) of rule 4 in which case it shall be according to the percentage.

6. **Payment to informer.**—With the approval of Director General, half of the admissible amount of reward shall be paid to an informer immediately after seizure and the remaining amount shall be paid on the completion of investigation.

7. **Amount of reward in certain other cases.**—(1) In case of loss of life of an officer or a staff during raid or seizure or otherwise connected or related to the overall drive against the drug menace in any form whatsoever, an amount not exceeding seven years salary shall be paid to the heirs of the deceased subject to availability of funds.

(2) In case an officer or staff is married, his or as the case may be, her spouse shall be deemed to be the nominee of the deceased for the purposes of this rule unless a contrary intention is expressed in writing by the officer or staff, during his life time.

(3) The amount payable under this rule shall be a charge on the common pool for welfare of officers and staff of the Force.

8. **Recommendation, etc., to be final.**—(1) The recommendation of concerned Director of the Force as to the identity of an informer or other connected matters shall after approval by the Director General be treated as final.

(2) The decision of the Director General shall be final as regards the amount to be paid to an informer, its timing and all other related matters.

9. **Amount of reward to be deposited in the Fund where there is no informer.**—Where there is no informer the entire portion of the informer's reward shall be paid into the National Fund for Control of Drug Abuse constituted under sub-section (1) of section 54 of the Control of Narcotic Substances Act, 1997 (XXV of 1997).

10. **Special rewards.**—(1) Notwithstanding anything contained in these rules, the Director General may sanction special rewards to officers and staff of the Force who render commendable and meritorious services.

(2) The expression "commendable and meritorious services" referred to in sub-rule (1), shall include an outstanding performance in one or more of the following spheres, namely :—

- (a) making original contribution in any field relating to interdiction, investigation and seizure of narcotic drugs, psychotropic substances and controlled substances or in the field of drug assets or money laundering investigations or in the field of prevention or demand reduction in any form whatsoever ;
- (b) displaying exceptional overall results in interdiction, seizure of narcotic drugs, psychotropic substances or controlled substances, investigation and prosecution of cases involving such substances ;
- (c) showing outstanding performance in tracing, freezing and confiscating drug assets or in the field of drug money laundering or investigations ; and
- (d) making original contribution in the field of demand reduction, preventive and research aspects of drug abuse or control.

11. **Common Pool for Welfare of Officers and Staff of the Force.**—There shall be established a fund to be known as the "Common Pool for Welfare of Officers and Staff of the Force", to which such amounts shall be credited as hereinbefore specified.

12. **Expenditure on welfare.**—(1) For the purpose of expenditure on the welfare of officers and staff of the Force, out of the sums paid into the Common Pool for Welfare of Officers and Staff of the Force, the Director General shall constitute a committee of which the Director General shall be the Chairman.

(2) The expenditure shall include the following items, namely :—

- (a) enhancement of operational performance of the Force ;
- (b) financial aid for education, health and marriage of dependent children of staff of the Force ;
- (c) improvement of the amenities for officers and staff of the Force including recreational facilities ;
- (d) special rewards to the family and heirs of officers and staff of the Force concerned, in cases of loss of life or injury ; and
- (e) other similar purposes at the discretion of the committee constituted under sub-rule (1).

13. **Payment of reward subject to availability.**—Notwithstanding anything hereinbefore contained the payment of rewards under these rules shall be subject to availability of funds and allocation by the Federal Government.

[No. F-7 (8)/94-Policy.]

MUHAMMAD ASHRAF CHEEMA,
Deputy Secretary.